DISCUSSANT · 11 NOVEMBER 2026

Whose liberty? Montesquieu in Brazil

Legal capacity and images of authority · Podium Cue Sheet & Visual-Pause Guide

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Target: ~9–10 min (686 words + pauses)

SLIDE & ON-SCREEN ANCHOR	SPOKEN TRAJECTORY, QUOTATIONS & METHODOLOGICAL CUES
01 / 07 · COVER **Whose liberty? Montesquieu in Brazil** Código Civil 1916, Art. 6	**Opening:** "Thank you, Serge, and thank you, Arno. I would like to approach Montesquieu through a question: *whose liberty does a legal order sustain?*" **Concrete Form:** 1916 Brazilian Civil Code, Art. 6 — placed married women among the relatively incapable; examined alongside two images of public authority. **Core Thread:** Context explains the conditions of liberty, yet appeals to particular circumstances also justify restrictions.
02 / 07 · CONDITIONS **Liberty and its conditions** Montesquieu I.3 / XIX.4 & VII.9	**Beyond Separation of Powers:** In *The Spirit of the Laws* (I.3 / XIX.4), laws operate in relation to customs, religion, commerce, and particular histories. **Book VII, Ch. 9:** In republics, women are *"free by the laws, and held captive by mores"* (*« libres par les lois, & captivées par les mœurs »*) — part of a comparison of regimes, not a general declaration of equality. **Landing:** How do legal rules and social expectations distribute freedom? Limiting public power and organising household authority must be connected in particular historical settings.
03 / 07 · RECEPTION **A Brazilian constitutional example** Constituição de 1824, Art. 10	**1824 Adaptation:** Art. 10 recognised four powers: *Legislativo, Moderador, Executivo, Judicial* — inviting inquiry into what actors selected and changed. **Methodological Rule:** Circulation of a book, use of an argument, and construction of an institution are distinct events (*Circulation of a text ≠ reproduction of a model*). **Transition to Images:** Apply the same discipline to visual symbols: the images open questions about legal authority; they do not prove a direct line of influence.
04 / 07 · OATH (1891) **Compromisso Constitucional** Aurélio de Figueiredo (painted 1896)	**Setup Before Pause:** Painted in 1896; represents Deodoro's constitutional oath on 26 February 1891. The interval matters: a retrospective representation of a constitutional moment. **[PAUSE FOR 5 SECONDS — Let audience read the floor and upper gallery]** **Floor vs. Gallery:** Deodoro holds the book; Prudente de Moraes presides at centre (1891 Const., Art. 44: authority presented through an obligation). In the gallery, women watch while men enact the commitment on the floor. **Guardrail:** Observation about composition (not attendance record or painter's documented intention). Who appears as party vs. spectator? Must bring the image into conversation with other sources.
05 / 07 · COURT (1961) **A woman's figure before the Court** Alfredo Ceschiatti, *A Justiça* (STF)	**Setup Before Pause:** Ceschiatti's *A Justiça* outside the Supreme Federal Court offers a different relationship between women and authority: a woman's figure represents justice itself; the sword rests across her lap. **[PAUSE FOR 5 SECONDS — Let audience observe the sculpture]** **1961 / 1962 Chronology:** Stillness as force held in reserve (judicial independence requires institutional evidence). Sculpture dates from **1961**; in **1962**, the Married Woman's Statute removed married women from Art. 6's incapacity list, yet retained the husband as head of the conjugal society (with his wife's collaboration). **Guardrail:** "The juxtaposition is mine" (not attributed to Ceschiatti). Feminine institutional symbol coexisted with limits on actual women's legal capacity.

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06 / 07 · CAPACITY **The limits of legal capacity** Código Civil 1916, Art. 6, II	**Drafting Sequence:** (1) *Primitive Project:* Married women not in Art. 6 incapacity list, but next article restricted civil capacity under husband's direction + male conjugal headship. (2) *16 April 1900:* Revising Commission moved married women into the incapacity list (*« As mulheres casadas, enquanto subsistir a sociedade conjugal »*). (3) *16 October 1901:* Beviláqua defended his earlier distinction while justifying restrictions via family direction, unity, and harmony. **Documented Distinction: Restrictions preceded the classification** (not an egalitarian project to which legislators simply added hierarchy). Beviláqua described marriage as an egalitarian society under the husband's direction, expressly invoking **Spencer** — no direct influence from Montesquieu established.
07 / 07 · DISCUSSION **Questions for discussion** Two closing prompts	**1.** *When a legal rule travels, what happens to the arguments used to justify it?* Follow justifying arguments (here, family organisation) as closely as the wording of the rule. **2.** *Whose liberty does the resulting legal order sustain?* Read the painted gallery and feminine Justice alongside legal texts and institutional records to see how authority is made visible, capacity distributed, and arrangements justified. **"Thank you."**